



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/11/2026 - 09:00 AM

09/02/2026

3:20 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

The court afforded petitioner an opportunity to supplement his request for the establishment of a guardianship and SIJF. The court appreciates the additional information submitted in declarations by both the proposed ward and guardian. The Court is somewhat confined by what petitioner alleges, which is a finding of neglect by both his mother and father. He states that his family lived in extreme poverty, and provides detailed facts in support thereof. Unfortunately, what he has described does not meet the definition of neglect under California law. It is defined as "willful or negligent failure of the parent or guardian to provide the child with adequate food, clothing, shelter, or medical treatment." Cal. Welf. & Inst. Code § 300(b)(1)." Nothing in his declaration or that of the proposed guardian even suggests the parents engaged in "willful or negligent failure to provide...." In spite of their own diligent efforts, the parents were simply not able to raise the family out of poverty. That is not the same as willful or negligent conduct. Neglect is the only allegation in the petition. However, based upon the declaration of the proposed guardian, there appears to be a basis on which to find abandonment on the part of the mother. Parties to appear to address how to address the inconsistency with how the matters are pled and what the evidence actually shows.

26-PRO-00496	In The Matter of the Joseph And Johanna Kapka Family Trust, Dated August 31, 2005, as amended and restated	FIRST ACCOUNT AND REPORT OF TRUSTEE AND PETITION FOR (1) SETTLEMENT OF ACCOUNT; (2) RATIFICATION OF ACTS OF TRUSTEE; (3) APPROVAL OF TRUSTEE COMPENSATION; (4) APPROVAL OF ATTORNEYS' FEES; AND (5) AND AUTHORIZATION OF PRELIMINARY DISTRIBUTION
Line 11	Petitioner: Scott, Anita (LEYDIKER, STEVEN S.) Decedent: KAPKA, JOHANNA Decedent: KAPKA, JOSEPH	Petition Hearing



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Tentative Ruling:

NO APPEARANCE

First Account and Report of Trustee is CONTINUED to December 8, 2026 at 9:00 am for Petitioner to (1) provide why venue is proper in San Mateo County, (2) file a copy of the Notification by Trustee pursuant to Probate Code section 16061.7 and proof of service of the Notification, (3) file a proof of service or declaration of diligent search for Conor Minihane, or an acknowledgement by attorney Leighton Burrey that he represents Conor Minihane and has authority to accept service, and (4) file a proposed order.

26-PRO-00497	IN THE MATTER OF DAVID WALDA LIVING TRUST	PETITION FOR DETERMINATION THAT REAL PROPERTY HELD SEPARATELY IN DECEDENT'S NAME IS AN ASSET OF THE TRUST UNDER PROBATE CODE 850
Line 12	Petitioner: Walda, Matthew Young Lee (O'TOOLE, BRIAN A.) Decedent: WALDA, DAVID GEORGE	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Determination that Real Property Held Separately in Decedent's Name is an Asset of the Trust under Probate Code §850 is CONTINUED to December 8, 2026 at 9:00 am for Petitioner to comply with Probate Code 851 and use Judicial Counsel form DE-115, and file a proposed order.